

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 22, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 8, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for designating the use of excess 1% Specific Purpose Sales and Use Taxes from the May 2, 2017 Special Election. There being no comment or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending various sections of Chapter 13.12, Sewer System, of Title 13, Public Services, of the Municipal Code of the City of Cheyenne, Wyoming to allow for exceptions to sewage disposal requirements – postponed from August 8, 2022. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated August 16, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins. (#4454)

ORDINANCE – 3rd READING – Amending Ordinance No. 4411 Defining the Terms and Conditions of Employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2022-2023. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Esquibel. Mr. White moved to amend by substitute “Exhibit B” dated August 10, 2022, seconded by Dr. Aldrich. Motion to amend by substitute exhibit carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute exhibit carried. Voting “yes” – all members of the governing body. (#4455)

ORDINANCE – 3rd READING – Amending Chapter 1.16, Annexation and Infrastructure Improvements, of Title 1, General Provisions, of the Municipal Code of the City of Cheyenne, Wyoming, to repeal annexation provisions, amend definitions, and modify processes. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4456)

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to CB Community Business for land located south of and adjacent to W Lincolnway. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development - Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, amending Ordinance No. 3841 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for Pointe Plaza, 6th Filing, Cheyenne, Laramie County, Wyoming (located to the northwest of the intersection of Gardenia Dr. and Powderhouse Rd.). Mr. Cook moved to approve on second reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Public comment was made by: Brad Emmons, AVI, agent for the applicant and Brenda Cowley. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Esquibel, Dr. Rinne and Mr. Roybal.

ORDINANCE – 2nd READING – Amending and repealing portions of Chapter 2.20, Police Department, and repealing Chapter 2.24, Police Pension Board and Fund, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to eliminate obsolete provisions. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapter 2.08, City Officers and Employees Generally, and amending and repealing portions of Chapter 2.28, Reserve Police Officers, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to update and revise the administration of the Reserve Police Officers Program and to extend administration over part-time Police Officers. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Comments were made by the following members of the governing body: Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 10.52.010, Method of Parking, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, to authorize back-in angle parking as specified. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave.

ORDINANCE –2nd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 12.04, Streets, Sidewalks and Driveways Generally, within Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming, to amend provision governing contract approvals. Mr. White moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located north of and adjacent to the intersection of Dell Range Boulevard and Moran Avenue – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of 12th Street, east of Logan Avenue – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending Section 2.32.020, Department Personnel, of Chapter 2.32, Fire Department, of Title 2, Administration and Personnel, to amend provision governing the appointment of Fire Department Personnel – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Fox Farm, a replat of a portion of Waterford Square and a portion of Waterford Square, 2nd Filing, City of Cheyenne, Laramie County, Wyoming (located east of Morrie Avenue, north of Fox Farm Road). Mr. Cook moved to adopt, seconded by Mr. White. Mr. Cook moved to amend by substitute map dated August 15, 2022, seconded by Mr. Segrave. Motion to amend by substitute map carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. Main motion as amended by substitute map carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Laybourn voting “no”. Comments were made by the following members of the governing body: Mayor Collins. (#6259)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2022 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6260)

RESOLUTION – Designating the use of excess 1% Specific Purpose Sales and Use Taxes collected from the May 2, 2017 Special Election. Mr. White moved to adopt, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#6261)

[CA] RESOLUTION – Supporting the Board of Public Utilities’ application to the Wyoming State Loan and Investment Board for a grant from the Water & Sewer ARPA Grant Program for the Water Reclamation Facilities (WRF) Hydraulic Capacity Project (Project) in the amount of

\$2,294,000.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents (BOPU Sewer Enterprise Fund & SLIB ARPA Water & Sewer Grant). Motion (per Consent Agenda) carried. (#6262)

[CA] RESOLUTION – Supporting the Board of Public Utilities’ application to the Wyoming State Loan and Investment Board for a grant from the Water & Sewer ARPA Grant Program for the North City Zone Improvements Project (Project) in the amount of \$3,927,097.00 and authorizing the Director of the Board of Public Utilities to execute the application and all related documents (Wyoming Water Development Committee Funding & SLIB ARPA Water & Sewer Grant). Motion (per Consent Agenda) carried. (#6263)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District boundaries for the DDA/Visit Cheyenne “Halloween Pub Crawl” to be held on October 29, 2022. Motion (per Consent Agenda) carried. (#6264)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown Development District boundaries for the DDA/Visit Cheyenne “Community Appreciation Day” to be held on September 24, 2022. Motion (per Consent Agenda) carried. (#6265)

[CA] RESOLUTION – Expressing the support of the Governing Body for community efforts to remove racially restrictive real estate covenants. Motion (per Consent Agenda) carried. (#6266)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Comea Subdivision, 2nd Filing, a replat of portions of Lots 6 thru 11, and Lots 12 thru 17, Block 404, Original City Plat, south of Lincoln Way, and north of the Union Pacific Railroad Right of Way, and Lot 1, Block 1, Comea Subdivision, being situated in a portion of the northeast ¼ of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of and adjacent to W Lincolnway) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$500,000.00). (#7579)

Memorandum of Understanding between the City of Cheyenne, Laramie County, and the Cheyenne Airport Board regarding the transfer of 2021 6th Penny Funds (1% Specific Purpose Sales Tax). Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve in an amount not to exceed \$823,361.40, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Dr. Rinne. (#7580)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District Number 1 for the School Resource Officers (SRO) Program (Revenue to City). Motion (per Consent Agenda) carried. (#7581)

[CA] Owner and Design-Builder Agreement between the City of Cheyenne and FCI Constructors of Wyoming, LLC for finishing the Cheyenne Public Safety Center (2012 1% Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and StreamLink Software Inc. d/b/a AmpliFund for a multi-year contract for grant management software (General Fund & American Rescue Plan Federal Recovery funds) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to the City) – referred to Finance Committee.

[CA] Grant agreement between the City of Cheyenne and the Federal Transit Administration to fund Transit operations (ARP 5307 Grant) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Community Recreation & Events, and the Officials for Fun Club to officiate the 2022-2023 youth and adult volleyball programs (Recreation Programs Fund) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for juvenile probation services (Revenue to the City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County for on-call crisis center services (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7427 between the City of Cheyenne and Russell+Mills Studios Inc., for the East Cheyenne Community Park Master Site Development Plan (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$36,865.00). (#7427)

[CA] Contract Modification #1 to Contract #7545 between the City of Cheyenne and OpenGov Inc., for Software as a Service (SaaS) Solution for budgeting, financial management, procurement, citizen services, reporting, transparency, and asset management (American Rescue Plan Federal Recovery funds) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7157 between the City of Cheyenne and United Way of Laramie County to provide services to various community programs to allocate remaining portion of 10% “Excess Monies” to Human Services pursuant to Resolution #5607 (2015-2018 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7434 between the City of Cheyenne and United Way of Laramie County to provide services to various community programs to allocate funds pursuant to Resolution #5933 (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-1-23 for a contract between the City of Cheyenne and Synergy Construction LLC for the Happy Jack Landfill Electrical Improvements Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$355,000.00). (#7582)

[CA] Consideration of Bid #S-18-22 for a contract between the City of Cheyenne and Johnson Sand & Gravel for the Landfill Tent Structure Demolition Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$90,682.38). (#7583)

Consideration to Purchase between the City of Cheyenne and Farrwest Environmental Supply, Inc. for a XploIR handheld gas identification system handheld FT-IR spectrometer (2020 State Homeland Security Program (SHSP) Grant). Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve, seconded by Mr. Robyal. Motion failed. Voting “no” – all members of the governing body. Comments were made by the following members of the governing body: Mayor Collins.

Appointments of Renee Hansen to the Laramie County Community Juvenile Service Joint Powers Board; Aaron Bentley to the Revolving Loan Fund Committee; and Richard Leslie and Ramon Moya to the Housing and Community Development Advisory Council. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

Reappointments of Dominic Valdez to the Revolving Loan Fund Committee; and Stephen Ganison to the Housing and Community Development Advisory Council. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (Mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue report as presented.

Announcement was made that due to City offices being closed for the Labor Day holiday on Monday, September 5, 2022, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 104, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meetings as follows: Finance Committee will meet Tuesday, September 6, 2022 at Noon and Public Services Committee will meet Wednesday, September 7, 2022 at Noon

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson, Mr. Segrave and Mr. White.

Mr. Segrave moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(iii), seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the

executive session. The following staff members were in attendance: City Attorney and City Clerk.
(Clerk's Note: executive session convened at 6:50 p.m.)

There being no further business to come before the governing body, the meeting was officially adjourned at 7:09 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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